



## DECISION

Complaint No. : POS/871/HYD/2024

Name and address of the complainant : Mr. Munawwar Ali Bhatti S/o Muhammad Khan  
R/o Madina Colony, Near Benazir School,  
Press Club Road, District Tando Muhammad Khan

Name of the Agency Complained against : Revenue Department / Chief Municipal Officer,  
Tando Muhammad Khan

Name & Designation of Investigating Officer : Abdul Wahab Memon,  
Regional Director, Badin

Vetted by : Fasihuddin Khan,  
Advisor 'Z'

Subject :

COMPLAINT AGAINST THE CHAIRMAN, MUNICIPAL COMMITTEE, TANDO MUHAMMAD KHAN, C.M.O. MR. AIJAZ MALLAH, MUKHTIARKAR, MR. FAHAD KHALILULLAH BILLO AND ASI MR. ABBAS LAGHARI FOR HARRASSMENT

### COMPLAINT

Mr. Munawwar Ali Bhatti filed a complaint dated 28.10.2024 against the Chairman, Municipal Committee (MC), T.M. Khan, the C.M.O. the Mukhtiarkar and the ASI for harassment concerning property which was allotted to him on 99 years lease by the Municipal Committee, T.M. Khan. Aggrieved by that, he solicited intervention of this Institution.

### PROCEEDINGS

2. The complaint was admitted u/s 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) after receiving mandatory Affidavit on Form 'A' and other relevant documents for investigation.
3. The matter was taken up with the Senior Superintendent Police (SSP), T.M. Khan and Additional Director, Local Government, T.M. Khan vide letter dated 01.12.2024 for report. In response the CMO, MC, T.M. Khan submitted his report vide letter dated 11.12.2024 stating that a shop situated near Press Club, T.M. Khan was allotted on rental basis at Rupees 1377/- per month to the complainant. The agreement expired in the year 2011 but despite notices, he neither renewed the agreement nor paid any rent to the Municipal Committee and as per their record, an amount of Rs.66,010/- was outstanding against him. Moreover, without prior permission he demolished the above mentioned shop and started to reconstruct it. The Chairman, MC had personally visited the site and after necessary verification, stopped the complainant from the said construction work.

The CMO further added that the complainant had produced receipts of rent paid according to him to the Municipal Committee but the same were found fake after verification from their office record. The Mukhtiarkar, T.M. Khan also submitted his report dated 12.12.2024 stating that the allegations leveled by the complainant were baseless and frivolous as the said property belongs to the Municipal Committee, Tando Muhammad Khan vide City Survey No.1931, measuring 3028-6 square yards as per revenue record. Meeran Muhammad Shah Library and Tando Muhammad Khan Press Club had been constructed by the Municipal Administration on the same land. The property claimed by the complainant belongs to the Government.

The report of the Agency was sent to the complainant vide letter dated 17.12.2024 for submission of rejoinder. The complainant submitted his rejoinder vide letter dated 24.12.2024 stating that he had been paying the rent of the said property regularly to the MC. He also enclosed the Photostat copies of said receipts as evidence in his support.

To ascertain the factual position, the matter was fixed for hearing on 28.07.2025 which was attended by the representative of the Municipal Committee, T.M. Khan. Reiterating the Agency's earlier stance he stated that the complainant was occupying the said property without any authenticated allotment orders and rent receipts produced by him were also fake which call for legal action against him on account of forgery under relevant Laws / Rules.

#### FINDING

4. After going through the file and hearing both the parties, it is observed that being a civil nature case, the instant complaint cannot be adjudicated upon by this Institution. The complainant may, therefore, seek his remedy from relevant court of Law, if desired.

#### DECISION

5. In view of the above and in exercise of powers vested in me u/s 11 of Establishment of the Office of Ombudsman for Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of accordingly.

**Given under my hand and seal of Office.**



**Sd/-**  
**(MUHAMMAD SOHAIL RAJPUT)**  
 Sitara-e-Imtiaz - PAS  
 Ombudsman, Sindh

Karachi, dated

05<sup>th</sup> December, 2025